TAWANDA RAYMOND CHINEMBIRI
versus
STAGRI BRANDS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE, 10 February 2026

Opposed Matter

M. M Masitera, for the plaintiff
M Moyo, for the defendant

MUNANGATI- MANONGWA J: The plaintiff herein issued Summons against the defendant seeking an order declaring the contract of employment signed by the Plaintiff and Defendant on the 14th day of December 2024 null and void and also wants costs of suit. The Defendant raised a Special Plea in Bar challenging this court's jurisdiction to entertain the Plaintiff's claim. The Defendant contends that the dispute is a purely labour matter falling within the exclusive jurisdiction of the Labour Court. The Plaintiff opposes the Special Plea. The court is therefore called upon to determine whether it has jurisdiction to hear a claim for declaratory relief concerning the validity of a written fixed-term contract of employment allegedly procured through undue influence and coercion.

Factual Background

The material facts are largely common cause and have been fully set out in the pleadings. In essence, the Plaintiff alleges that he was employed by the Defendant under a four-year verbal fixed-term contract commencing in April 2024. In December 2024, following the successful disbursement of funding secured with the assistance of the Plaintiff, the Defendant induced him to sign a four-month written contract under conditions of undue pressure, misrepresentation, and economic duress. The Plaintiff alleges that he initially declined to sign the new contract, pointing out that he was already under a four-year contract which had not yet lapsed. He alleges that the Defendant, acting through its representative, one Valentine Tapfumaneyi, misrepresented to the Plaintiff that the company was undergoing a

system upgrade and that, for administrative reasons, it was necessary for the plaintiff to sign a temporary contract terminating on 31 December 2024.

The plaintiff alleges that the Defendant further placed undue pressure on him to sign the contract by withholding all his accrued arrear salary and only undertook to release same after the Plaintiff had signed the contract. It is the plaintiff's case that he was assured that a new contract covering the remainder of the original four-year term would be issued effective January 2025. Thus, plaintiff maintains that Defendant, by virtue of its dominant position as employer, unduly influenced his decision-making, thereby rendering his will pliable and his resistance weakened. He contends that the Defendant exploited this influence unscrupulously to procure the Plaintiff's consent. The plaintiff alleges that fearing to lose his job and the income he so needed he signed the shortened contract under undue pressure exerted on him. It is the plaintiff case that contrary to the defendant's undertaking to sign a new contract in January 2025 the defendant terminated his employment relying on the fixed term contract.

The Plaintiff thus now seeks a declaratory order that the four-month written contract is invalid at common law. It is common cause that the Plaintiff has also approached a Labour Officer alleging unfair dismissal arising from the termination of his employment.

In raising the special plea the defendant argues that:

i) The dispute arises from an employment relationship;
ii) Employment disputes fall within the exclusive jurisdiction of the Labour Court;
iii) The Plaintiff has already invoked labour dispute resolution mechanisms in respect of the same employment relationship.

In addition, the Defendant contends that the Plaintiff is guilty of material non-disclosure. It is argued that the Plaintiff failed to fully disclose that the dispute relating to the termination of his employment was pending before a Labour Officer, who is statutorily empowered to determine issues of unfair dismissal. The Defendant submits that this non-disclosure amounts to an abuse of court process and that the Plaintiff was forum shopping. Ms Moyo also argued that the plaintiff approached this court with "dirty hands." On this basis, the Defendant argues that the High Court should decline jurisdiction and defer to the labour dispute resolution framework. However Ms *Moyo* for the defendant later abandoned the "dirty hands" argument given that there was no basis on which that allegation could be sustained.

Issues for Determination

The sole issue for determination is whether this court has jurisdiction to grant declaratory relief concerning the validity of an employment contract allegedly procured through undue influence.

Analysis

Apart from statutory provisions, it is trite that jurisdiction is determined by the nature of the relief sought. In *Air Zimbabwe (Private) Limited v Mateko & Ors SC 180/20* the court held that jurisdiction is established by examining the plaintiff's cause of action and the remedy sought. Similarly, in *Tamanikwa & Others v Zimbabwe Manpower Development Fund SC 33/13*, the Supreme Court reaffirmed that the Labour Court's jurisdiction is limited to matters specifically conferred upon it by statute.

The Plaintiff in casu does not seek reinstatement, damages for unfair dismissal, or any relief provided for under the Labour Act [Chapter 28:01]. Instead, he seeks a declaratory order on the validity of a contract, relying on common law doctrines of undue influence, coercion, and misrepresentation. The power to grant declaratory relief is vested in the High Court by virtue of its inherent jurisdiction. This position was clearly articulated in, *Agribank* v *Machingaifa* 2008 (1) ZLR 244 (SC) where the Supreme Court held that the High Court has wide powers to grant declaratory relief whenever there is an existing, future, or contingent right requiring de termination. The High Court Act further makes it clear where it provides in S14 that:

14. High Court may determine future or contingent rights

and "The High Court may, in its discretion, at the instance of any interested person, inquire into determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

The Labour Court, being a creature of statute, has no inherent jurisdiction and cannot determine the validity of contracts at common law. This principle was emphasised in *Surface Investments (Pvt) Ltd v Chinyani* HH 295/14 where the court held that issues involving the existence, validity, or enforceability of contracts fall outside the exclusive domain of labour forums.

The Defendant's argument that the mere fact that the contract is one of employment automatically renders the dispute a labour matter is misplaced. In *William Bains & Co. Holdings (Pvt) Ltd* v *Nyamukunda* HH 309/13 it was held that the "Labour Court enjoys exclusivity in all matters where the cause of action and the remedy are all provided for in the Act. Outside that, for instance where the cause of action and the remedy are located in the

common law, the ouster provision in the Labour Act has no application and this court will exercise jurisdiction."

Even where labour issues are implicated, the High Court retains jurisdiction to determine matters of contractual validity. In *Munodawafa v Masvingo District Administrator & Ors HH 571/15* the court confirmed that the High Court's jurisdiction is not lightly ousted and will only be excluded where legislation does so in clear and unambiguous terms.

Turning to the argument of material non-disclosure, the court is not persuaded that this contention advances the Defendant's Special Plea. The Plaintiff's proceedings before a Labour Officer concern an allegation of unfair dismissal, a statutory cause of action falling under the Labour Act. The present proceedings concern the common law validity of a written contract allegedly procured through undue influence. These are distinct causes of action, grounded in different legal regimes, and seeking different relief. The Defendant did not raise a plea of *lis pendens*, nor did it demonstrate that the determination of the contractual validity is a matter that the Labour Officer is empowered to decide. In any case the lack of jurisdiction to issue declaratory orders by the Labour Court would of necessity apply to a labour officer.

Allegations of non-disclosure and "dirty hands," even if established, do not oust this court's jurisdiction and are irrelevant to the narrow jurisdictional enquiry raised by a Special Plea in Bar. In any event, parallel proceedings are permissible where the causes of action and relief sought are materially different.

Conclusion

The Plaintiff's claim is grounded in common law and seeks declaratory relief that is not available before the Labour Court or a Labour Officer. The matter is therefore not a purely labour dispute. This court has jurisdiction to hear and determine the claim.

In that regard, the court makes the following order:

The Defendant's Special Plea in Bar is hereby dismissed with costs.

MUNANGATI – MANONGWA J ……..

M.Moyo, Legal Practice for the defendant
Chimwamurombe, Legal practice for the Plaintiff